

26STCV06093 26STCV06093

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 26STCV06093 Hearing Date: July 8, 2026 Dept: 510

No. 8 – Lais Pedroso v. Pocket Latte

LLC

Plaintiff

Lais Pedroso's Request for Default Judgment

Plaintiff Lais Pedroso requests

court judgment by default against Defendant Pocket Latte LLC. Plaintiff's application for default has several defects.

Excessive Damages

Plaintiff requests

default judgment for damages of \$250,000. Not only is this request unsupported by any evidence, it also improperly exceeds the amount demanded in the complaint. "A default judgment greater than the amount specifically demanded in the complaint is void as beyond the court's jurisdiction." (Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc. (2018) 23 Cal.App.5th 1013, 1018 (Airs Aromatics).) "Where no amount of damages is demanded any amount awarded is by definition greater than the amount demanded." (Falahati v. Kondo (2005) 127 Cal.App.4th 823, 830-831.) The complaint's prayer for relief does not specify any amount of damages. (See Compl., prayer, at p. 6.)

To recover the damages

Plaintiff requests, she must amend the complaint to specifically demand that amount. Doing so would vacate Defendant's default. After a plaintiff "file[s] an amended complaint praying for a different amount of damages and/or other appropriate

relief... she must serve her amended complaint on defendants, who will be entitled to file a new answer; all issues will then be at large, including liability.” (Greenup v. Rodman (1986) 42 Cal.3d 822, 830; accord *Airs Aromatics*, supra, 23 Cal.App.5th at p. 1025 [filing amended complaint vacates default].) Any amended complaint must be served in the manner of a summons. (*Engbretson & Co. v. Harrison* (1981) 125 Cal.App.3d 436, 444.)

Other Defects

Plaintiff does not include a brief summary of the case nor any declarations in support of the judgment requested. Plaintiff did not dismiss the remaining Doe defendants as required under California Rules of Court, rule 3.1800(a). Plaintiff also does not substantiate her request for \$5,000 in attorney fees. The proposed judgment form is also incomplete.

Disposition

Plaintiff’s request for default judgment is denied without prejudice.

Should Plaintiff desire to file an amended complaint, the Court will vacate the default of Defendant Pocket Latte LLC.